

ADDENDUM NO. 1 TO ADA/PROWAG CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

717 S. Henderson Street — Supplemental Submission: Pedestrians Were Routed to a Non-Compliant Sidewalk

Submitted to: Michael Shermis, ADA Coordinator / Human Rights Commission Director

City: City of Bloomington, Indiana

Date: July 17, 2026

Re: Addendum No. 1 to ADA/PROWAG Complaint dated July 7, 2026 — 717 S. Henderson Street

This is a supplemental submission to the ADA/PROWAG complaint dated July 7, 2026, regarding 717 S. Henderson Street (the “Complaint”). It is submitted as an addendum to the Complaint, not as a new complaint, and does not restart the 60-day response period established in Section 10 of the Complaint, which continues to run from the Complaint's original filing date of July 7, 2026. This addendum documents developments observed by the complainant since that filing.

The complainant notes that the Complaint already identified PROWAG's clear and unconditional requirement that an accessible route be provided and properly signed. With that requirement squarely before it, the City nonetheless directed pedestrians to a route that did not meet it.

1. Construction Activity Observed On or About July 14, 2026

On or about July 14, 2026, as part of the construction to bring the sidewalk into compliance, signage was placed at the south approach directing pedestrians to cross to the opposite (west) side of S. Henderson Street (Fig. 7).



Fig. 7: Signage placed at the south approach directing pedestrians to cross S. Henderson Street, observed on or about July 14, 2026 (complainant's photograph).

As explained in Section 2.5 of the Complaint, the complainant does not consider the west side a meaningful accessible alternate route. The complainant requests that the City confirm what accessible temporary pedestrian access route, if any, was provided and maintained during the construction described above, consistent with the obligation described in Section 6 of the Complaint.

2. The West-Side Route Was Not a Compliant Accessible Route

The complainant surveyed the west-side route to which the signage in Fig. 7 directed pedestrians and documented seven separate locations of non-compliance along it, summarized below. Taken together, they confirm that this route could not serve as a compliant accessible alternate while the east side was under construction.

Alley-Cut Drops (PROWAG R302.6.2)



Fig. 8: First alley-cut drop on the west-side route, measuring over 3 inches (complainant's photograph).



Fig. 9: Second alley-cut drop on the west-side route, also measuring over 3 inches (complainant's photograph).

Both drops substantially exceed the maximum permitted under PROWAG R302.6.2 and would require a compliant sloped transition rather than an abrupt drop.

Additional Trip Hazards (PROWAG R302.6.2)



Fig. 10: Vertical surface discontinuity on the west-side route, well in excess of the 1/2-inch maximum (complainant's photograph).



Fig. 11: A second vertical surface discontinuity on the west-side route, well in excess of the 1/2-inch maximum (complainant's photograph).

Sidewalk Obstruction — Sign Post (PROWAG R302.3)



Fig. 12: A stop-sign post standard on the west-side route, reducing the walkway (complainant's photograph).



Fig. 13: Measurement showing the sign post reduces the continuous clear width to approximately 39 inches, below the 48-inch minimum required by PROWAG R302.3 (complainant's photograph).

Sidewalk Obstruction — Waste and Recycling Containers



Fig. 14: Waste and recycling containers obstructing the west-side route (complainant's photograph).



Fig. 15: A second location where waste and recycling containers obstruct the west-side route (complainant's photograph).

Collection for this route occurred the preceding Monday; both photographs were taken the following Thursday, indicating the containers were left obstructing the walkway for several days rather than only during active collection.

These seven locations — two alley-cut drops, two additional trip hazards, one sign-post obstruction, and two container obstructions — establish that the west-side route was not, at that time, a continuous, compliant pedestrian access route, and could not serve as one while pedestrians were being directed to it during construction on the east side.

3. Requested Clarifications

The complainant requests that the City's response to the Complaint address the following, in addition to the matters raised in Section 9 of the Complaint:

- Whether an accessible temporary pedestrian access route was provided and maintained during the construction phase described above, given that the signage then in place directed pedestrians to a west-side route documented in Figs. 8–15 to contain multiple independent PROWAG violations; and
- Confirmation that this addendum has been incorporated into the record for the Complaint dated July 7, 2026.

This addendum does not alter, narrow, or withdraw any request made in the Complaint, including the remedies requested in Section 9.

Respectfully submitted,

Name:

Address:

Phone/Email:

July 17, 2026

This addendum was prepared by the complainant with drafting assistance from AI tools.